

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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PENNY EDWARDS and ALFONDA JACKSON,

Plaintiffs,

-against-

KRYSTAL MURRAY; and JOHN and JANE DOE 1-15, individually and in their official capacities (the names John Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiffs Penny Edwards and Alfonda Jackson, by their attorney Joseph Indusi, Esq., of London Indusi LLP, for his complaint against Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiffs seeks relief through 42 U.S.C. §1983 and 42 U.S. §1988 for the violation of his civil rights protected by the Fourth and Fourteenth Amendments of the United States Constitution.

2. The claim arises from a May 3, 2015 incident in which Defendants, acting under color of state law, unlawfully stopped and arrested Plaintiffs without probable cause. Plaintiffs spent approximately 24 hours unlawfully in police custody. During the course of police interaction, Plaintiffs were physically injured by Defendants. After going to Court a number of times, Plaintiffs' case was dismissed and sealed on July 7, 2015.

3. Plaintiffs seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

**COMPLAINT AND
JURY DEMAND**

Docket No.
15-cv-4008

ECF CASE

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331 and 1343(a) (3) and (4).

VENUE

6. Venue is laid within the Eastern District of New York in that a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District. 28 U.S.C. § 1391 (b).

PARTIES

7. Plaintiffs Penny Edwards (“Ms. Edwards”) and Alfonda Jackson (“Ms. Jackson”) resided at all times here relevant in King’s County, City and State of New York.

8. Police Officer Krystal Murray, Shield No. 15129 (“Murray”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Murray was, at the time relevant herein, a Police Officer under Shield # 15129 of the 75th Precinct. Defendant Murray is sued in her individual capacity.

9. At all times relevant Defendants John and Jane Doe 1 through 15 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the real names and/or shield number of Defendants John and Jane Doe 1 through 15.

10. At all times relevant herein, Defendants John and Jane Doe 1 through 15 were acting

as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 15 are sued in their individual and official capacities.

11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

12. On May 3 2015, at approximately 9:00 p.m., Ms. Edwards and Ms. Jackson were walking on Pitkin Avenue in Brooklyn, King's County, New York.

13. Ms. Edwards is Ms. Jackson's mother.

14. Ms. Edwards and Ms. Jackson both live at 2221 Pitkin Avenue, in Brooklyn, New York.

15. While walking through the courtyard into their building at 2221 Pitkin Avenue, Ms. Jackson observed an unattended baby stroller with a baby inside.

16. Ms. Jackson approached the unattended baby stroller to make sure the baby was okay.

17. The baby in the stroller was not related to Ms. Jackson or Ms. Edwards.

18. As soon as Ms. Jackson approached the stroller, Defendant Murray ran over and yelled at Ms. Jackson for being an unfit mother.

19. Ms. Jackson explained that this is not her baby.

20. Defendant John Doe grabbed Ms. Jackson by the hair and threw her to the ground, causing injury to her back and bruises to her face.

21. Defendants, including Defendant Murray, unlawfully handcuffed Ms. Jackson.

22. Ms. Edwards walked over and inquired what was going on.

23. Defendant Murray picked up Ms. Edwards from behind and slammed her body into

the ground, causing pain to Ms. Edwards' back.

24. Defendants, including Defendant Murray, kneed Ms. Edwards in the back.

25. Defendants, including Defendant Murray, unlawfully handcuffed Ms. Edwards and dragged her across the courtyard, causing injury to Ms. Edwards knees and bruises to her face.

26. The Defendants did not observe Plaintiffs commit any crime or infraction.

27. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiffs.

28. Plaintiffs did not resist arrest.

29. Defendants, including Defendant Murray, searched Plaintiffs without their authority or permission.

30. No contraband or anything of illegality was found on Plaintiffs.

31. Defendants, including Defendant Murray, placed Plaintiffs under arrest and transported him to central bookings.

32. Defendants, including Defendant Murray, conveyed false information to prosecutors in order to have Plaintiffs prosecuted for Obstructing Governmental Administration, Resisting Arrest, and Disorderly Conduct.

33. Plaintiffs were unlawfully held in police custody for approximately 24 hours before being arraigned on those charges.

34. At arraignments, the Judge released Plaintiffs on their own recognizance, and the matter was adjourned.

35. On July 7, 2015, Plaintiffs both received an Adjournment in Contemplation of Dismissal with immediate sealing.

36. At all times relevant hereto, Defendants were involved in the decision to arrest

Plaintiffs without probable cause or failed to intervene in the actions of their fellow officers when they observed them arresting Plaintiffs without probable cause.

37. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiffs and violate their civil rights.

38. As a direct and proximate result of the acts of Defendants, Plaintiffs suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, and loss of liberty.

FIRST CAUSE OF ACTION

Unlawful Stop and Search
42 U.S.C. § 1983 Against Individual Defendants

39. The above paragraphs are here incorporated by reference as though fully set forth.

40. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiffs without reasonable suspicion.

41. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

42. The above paragraphs are here incorporated by reference as though fully set forth.

43. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

44. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent,

and without probable cause or reasonable suspicion.

45. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

46. The above paragraphs are here incorporated by reference as though fully set forth.

47. The individual Defendants created false evidence against Plaintiffs, to wit, sworn documents and testimony alleging that Plaintiffs obstructed governmental administration and resisted arrest.

48. The individual Defendants forwarded false evidence to prosecutors in the King's County District Attorney's office.

49. In creating false evidence against Plaintiffs, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiffs' right to a fair trial under the Due Process Clause of the Fourth and Fourteenth Amendments of the United States Constitution.

50. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

51. The above paragraphs are here incorporated by reference as though fully set forth.

52. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

53. Accordingly, the Defendants who failed to intervene violated the Fourth and

Fourteenth Amendments.

54. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

55. The above paragraphs are here incorporated by reference as though fully set forth.

56. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiffs without their consent.

57. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiffs in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiffs punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiffs compensatory and special damages in an amount to be determined by a jury;
- d) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demands a trial by jury.

Dated: July 8, 2015
Brooklyn New York

Respectfully submitted,

/s/ Joseph Indusi, Esq.
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